

IN THE DISTRICT COURT OF THE STATE OF NEBRASKA

RILEY SAMPLE,
Petitioner,

v.

[NON-COMPLYING OFFICER, AGENCY OR POLITICAL SUBDIVISION — NAME THE ENTITY
THAT FAILED TO COMPLY],
Respondent.

DOCKET NO.: [TO BE CONFIRMED]

PETITION TO COMPEL COMPLIANCE WITH THE SECURITY, PRIVACY, AND DISSEMINATION
OF CRIMINAL HISTORY INFORMATION ACT PURSUANT TO NEB. REV. STAT. § 29-3528

STATUTORY AUTHORITY

Neb. Rev. Stat. § 29-3528 — Where any officer or employee of the state, its agencies or its political subdivisions, or any state agency or political subdivision, fails to comply with the Security, Privacy, and Dissemination of Criminal History Information Act, any person aggrieved may bring an action, including but not limited to an action for mandamus, to compel compliance. Venue is statutory: the district court of any district in which the records involved are located, or the district court of Lancaster County.

Neb. Rev. Stat. § 29-3523(3) — Supplies the underlying sealing duty on which this action rests. The action becomes available where the applicable § 29-3523(3) period has run or its trigger has occurred and the record is still public.

Neb. Rev. Stat. § 29-3523(7) — Carried in the pinned registry authority list for this track as part of the § 29-3523 sealing scheme.

Neb. Rev. Stat. § 29-3527 — Carried in the pinned registry authority list for this track as part of the Security, Privacy, and Dissemination of Criminal History Information Act.

State v. Coble, 299 Neb. 434 (2018) — Identifies the § 29-3528 action as the correct route, in contrast to a motion filed in the criminal case.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the District Court of Lancaster County, Nebraska, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Lancaster County, Nebraska.

II. PARTIES

3. Petitioner is Riley Sample, whose address is 1234 Example Avenue, Lincoln, NE 68501.
4. Respondent is the officer, agency or political subdivision named in this Petition.
5. Petitioner has also been known as: Riley Q. Sample.

III. FACTS AND CASE HISTORY

6. On or about 10/22/2020, Petitioner was charged with Theft by unlawful taking by Lincoln Police Department.
7. The matter was assigned Docket Number [TO BE CONFIRMED].
8. On 03/09/2021, the matter was resolved with the following disposition: Charge dismissed.

IV. ELIGIBILITY ALLEGATIONS

9. Petitioner may be eligible for sealing on the following basis: Action under Neb. Rev. Stat. § 29-3528 to compel compliance with the sealing duty, the applicable Neb. Rev. Stat. § 29-3523(3) period having run or its trigger having occurred while the record remains public.
10. The period applicable to this record under Neb. Rev. Stat. § 29-3523(3) has run, or its trigger has occurred.
11. The criminal history record information identified above remains publicly available notwithstanding the sealing duty imposed by the Security, Privacy, and Dissemination of Criminal History Information Act.
12. Petitioner is a person aggrieved by that failure to comply, and brings this action under Neb. Rev. Stat. § 29-3528 to compel compliance.
13. Petitioner elects to bring this action in this district under the venue provision of Neb. Rev. Stat. § 29-3528.
14. Petitioner describes the circumstances of the continued public availability of the record in the accompanying statement; that statement is completed by Petitioner and is not supplied by any other person.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Grant this Petition and enter an Order directing the sealing of the criminal history record information identified in this Petition that the Security, Privacy, and Dissemination of Criminal History Information Act requires to be sealed in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to seal all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Riley Sample, declare that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Riley Sample
1234 Example Avenue, Lincoln, NE 68501

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

PROPOSED ORDER

IN THE DISTRICT COURT OF THE STATE OF NEBRASKA

RILEY SAMPLE v. [NON-COMPLYING OFFICER, AGENCY OR POLITICAL SUBDIVISION —
NAME THE ENTITY THAT FAILED TO COMPLY]

DOCKET NO.: [DOCKET NUMBER TO BE CONFIRMED]

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The officer, agency or political subdivision named in this Petition, and each Nebraska criminal justice agency holding the record, Lincoln Police Department, and all other criminal justice agencies with records pertaining to this matter are hereby directed to seal all records relating to the above-captioned matter.

BY THE COURT:

J.

ATTACHMENTS

Attachments submitted with this petition:

- Proposed order compelling compliance
- Certified court record showing the disposition
- Evidence that the record remains publicly available

Prepared by petitioner using LegalEase RCAP. This is not an official court form.